



Pre-existing Site Conditions & Household Income Certification

State law (Article 2 in Chapter 12 of the California Government Code) and County Code (Title 22 Chapter 22.119) require the replacement of existing or pre-existing residential units prior to or concurrently with a development project if the existing or pre-existing residential units are proposed to be or have been demolished or converted from rental to for sale.

The information provided on this form will be used to determine the number, types, sizes, and affordability of the replacement units.

Additionally, projects utilizing Section 65852.21 of the Government Code (SB 9) shall not demolish or alter any rent-stabilized units that are subject to the State or County Rent Stabilization Ordinance; subject to a recorded covenant and agreement restricting rents to levels affordable to moderate, lower, or very low-income households; housing that has been tenant-occupied in the last three (3) years. Projects shall not propose development on a site that has withdrawn accommodations from rent or lease within the last fifteen (15) years under the Ellis Act.

Failure to provide accurate and complete information will delay review or result in project denial.

1. Subject Property

Assessor's Parcel Number(s): _____

Property Address or Site Location: _____

2. Pre-Existing Site Condition – Check “Yes” or “No” for each^{1,2}

a. Is the project any of the following?

- New construction of a primary building
- Change of a primary residential use to another primary use
- Change in the number of principal units
- Subdivision
- Legalization of existing unpermitted principal unit

No
(REPLACEMENT
REQUIREMENTS DO
NOT APPLY)

Yes

b. Is the project any of the following?

- One single-family residence (SFR) on a lot with no principal uses/buildings other than one existing SFR which has been or will be demolished/vacated
- New construction or legalization of an accessory dwelling unit (ADU) or Junior ADU
- Conversion to resident ownership of all rented spaces in a mobilehome park
- Addition of mobilehome spaces or mobilehomes in a mobilehome park

No

Yes
(REPLACEMENT
REQUIREMENTS DO
NOT APPLY)

c. Is the project a lease project subdivision
per [County Code Section 21.08.090](#)?

No

Yes
(REPLACEMENT
REQUIREMENTS DO
NOT APPLY)

PRE-EXISTING SITE CONDITIONS &
HOUSEHOLD INCOME CERTIFICATION

PROJECT NO.: _____

- | | No
(REPLACEMENT
REQUIREMENTS DO
NOT APPLY) | Yes |
|---|---|-----|
| d. At any time in the last ten (10) years, has the subject property contained a dwelling unit(s) (whether vacant, occupied or demolished)? | | |
| e. Are/were any of the dwelling units rented at any time in the last five (5) years? | No | Yes |
| f. If you answered "yes" to 2e, are/were any of the dwelling units rented at any time in the last three (3) years? | No | Yes |
| g. Are/were any of the dwelling units subject to a recorded covenant and agreement restricting rents to levels affordable to moderate, lower, very low and/or extremely low-income households?
<i>(If yes, attach copy of the covenant and agreement.)</i> | No | Yes |
| h. Is the project located on a site where residential units were withdrawn from rent or lease under the Ellis Act – Chapter 12.75 of Division 7 of Title 1 of the Government Code , in the fifteen (15) - year period prior to your application submittal? ² | No | Yes |
| i. Is the project located on a site where residential units were withdrawn from rent or lease under the Ellis Act in the ten (10) - year period prior to your application submittal? | No | Yes |
| j. Are you proposing to alter or demolish any of the existing units? | No | Yes |

¹If you answer "yes" to 2f or 2g, and you also answer "yes" to 2j, your project is **not** eligible for review under SB 9.

²If you answer "yes" to 2h, your project is **not** eligible for SB 9.

If answers to 2b-2g are all "no," replacement requirements do not apply, skip to Section 4.

Rent stabilization screening questions^{3,4}

- | | | |
|--|----|-----|
| k. Are/were the dwelling units in any of the following? | No | Yes |
| • Duplex (including if owner-occupied) | | |
| • Multi-unit development | | |
| • Accessory dwelling unit (with proof of continuous occupancy) | | |

If answered yes to the above, were the units built in 1995 or later?	No	Yes
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- | | | |
|---|----|-----|
| l. Is/was the dwelling unit an unpermitted dwelling unit? | No | Yes |
|---|----|-----|

- | | | |
|--|----|-----|
| m. Are/were the dwelling unit(s) built in the last fifteen (15) years? | No | Yes |
|--|----|-----|

- | | | |
|---|----|-----|
| n. Have the dwelling unit(s) been rented since November 20, 2018? | No | Yes |
|---|----|-----|

A “no” answer means the unit(s) **have not** had a tenant since November 20, 2018.

A “yes” answer means the unit(s) **have** had a tenant since November 20, 2018.

- | | | |
|---|----|-----|
| o. If the unit(s) are/were condominiums or single-family homes (units that can be sold separately), are/were they owned by any of the following after January 1, 2020?: | No | Yes |
| ▪ An individual owner(s); | | |
| ▪ LLC with NO corporate member; | | |
| ▪ Family trust. | | |

³ If you answer “yes” to 2j above, **and** answer “yes” to any of the questions 2k through 2m and 2o, **and** “no” to 2n, project is still eligible for SB 9.

⁴ If you answer “yes” to any of the questions 2k through 2m and 2o, and “no” to 2n, the unit(s) are **not** rent-stabilized. However, if you answered “yes” to 2k, 2l, or 2m, above, they still must be replaced if they were occupied by lower, very low, or extremely low-income tenants within the last five years.

3. Income Levels of Households in Rental Units

Use this section to indicate the number of dwelling units that currently exist or existed on the site within the last five years (or 10 years, if you answered "yes" to question 2d, above).

Indicate the size (number of bedrooms) and household income level of the household renting the unit of each unit.
([See Los Angeles County Affordable Housing Income Limits](#))

If some or all of the existing units are unoccupied, refer to the income information for the last household in occupancy.

For rental properties that have been vacated or demolished, use the greatest number of units that were occupied by extremely low, very low- or lower-income households, or were rent-stabilized and rented by moderate or above moderate-income households, during the last five years.

Please attach additional pages if more than twenty-five (25) units need to be documented.

Total number of units:

Existing Unit	Household Income Level (Check One)					Unit Size (Check One)				
	Unknown	Extremely Low	Very Low	Low(er)	Moderate	Studio	1 bedroom	2 bedroom	3 bedroom	4 or more bedrooms
1										
2										
3										
4										
5										
6										
7										
8										
9										
10										
11										
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4. Owner / Applicant Certification

I certify under penalty of perjury that the foregoing is true and correct. Furthermore, I certify that I will provide the following to any tenants of occupied units requiring replacement, as applicable: 1) relocation benefits pursuant to the County's Rent Stabilization Ordinance, and 2) a right of first refusal for a comparable replacement unit at an affordable rent in the proposed development that is the subject of this certification.

I understand that I may be asked to provide documentation to support the household income information provided here, and that failure to produce said documentation to the satisfaction of the Department of Regional Planning will result in a presumption that extremely low, very low and/or lower income households occupied units on the site in accordance with Section 22.119.050.B of the Los Angeles County Code.⁵

Signature (Wet Ink): _____ Date: _____

Print Name: _____ Check One: Owner Applicant

⁵ Pursuant to Section 22.119.050.B of the Los Angeles County Code, when tenant incomes are unknown, extremely low, very low and/or lower income renter households are assumed to have occupied the units in the same proportion as they occupy all renter households within the unincorporated County, as determined by the most recently available data from the United States Department of Housing and Urban Development's Comprehensive Housing Affordability Strategy database.